

About Liability Basis Standard (LBS)

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Category:

Governance & Enforcement

Subcategory:

Liability Governance

Governed Space:

Liability Basis

What Is the Liability Basis Standard?

The Liability Basis Standard (LBS) is the LIGA™ Parent Standard governing the foundation upon which Liability may potentially exist in relation to a Governed Liability Object.

It establishes how a potential Liability Basis is identified, sourced, classified, qualified, associated with the relevant Liability Object, and maintained before subsequent Liability governance evaluates Relationships, Conditions, Connection, Attachment, or Determination.

Its central question is:

On what governed basis can Liability potentially exist?

LBS prevents Liability governance from moving directly from an event, consequence, allegation, Harm, Loss, Damage, responsibility, obligation, or Claim to a Liability conclusion without first establishing the basis under which Liability could potentially arise.

Canonical Meaning

A Liability Basis is the explicitly governed foundation under which Liability may potentially exist in relation to a Governed Liability Object.

The Basis explains why a Liability inquiry can legitimately proceed.

It does not establish that Liability exists.

A Liability Basis may arise from a contractual, statutory, regulatory, obligation-related, ownership-related, control-related, undertaking-related, warranty-related, guarantee-related, status-based, or another appropriately recognized foundation.

The canonical distinction is:

Liability Basis ≠ Liability Determination.

Why Is the Standard Necessary?

Liability cannot be governed reliably if the reason why Liability could potentially exist remains implicit.

A Harm may exist without Liability.

A Loss may exist without Liability.

A responsibility structure may exist without Liability.

An obligation may exist without creating Liability in the matter being examined.

A Claim may assert Liability without establishing it.

LBS introduces the methodological layer between the governed matter and later Liability evaluation.

The sequence becomes:

Governed Liability Object → Governed Liability Basis → Liability Relationship Governance rather than:

Event / Harm / Loss / Allegation → Liability.

What Does LBS Govern?

LBS governs the formation and maintenance of Liability Basis.

This includes:

Basis identification, Basis origin and source, Basis classification, Basis qualification, potential applicability, Object–Basis association, multiple Bases, alternative Bases, concurrent Bases, competing Bases, dependent Bases, Basis uncertainty, Basis assumptions, Basis exclusion, Basis change, Basis supersession, Basis reassessment, Basis continuity, and Basis readiness.

Its principal output is:

Governed Liability Basis

What Does LBS Not Govern?

LBS does not determine whether Liability ultimately exists.

It does not determine:

Liability Subjects, complete Liability Relationships, Liability Conditions, Condition Satisfaction, Liability-Relevant Connection, Liability Attachment, Liability Determination, Liability Scope, Liability Allocation, Liability State, Transfer, Recourse, Resolution, Discharge, or Finality.

These belong to later LIGA™ governance spaces.

LBS also does not replace jurisdiction-specific legal interpretation, courts, regulators, arbitrators, insurers, contractual authorities, or other competent decision-making bodies.

Its function is methodological governance.

Liability Basis and Liability Conditions

One of the most important LIGA™ distinctions is:

Liability Basis ≠ Liability Conditions.

The Basis answers:

Why can Liability potentially exist?

The Conditions answer:

What must exist, fail, change, or be satisfied under that Basis for the Liability inquiry to proceed?

A valid Basis may therefore exist while its required Conditions remain unsatisfied.

Liability Basis and Attachment

Establishing a Liability Basis does not attach Liability to a Subject.

The lifecycle must continue through:

Liability Basis → Liability Relationships → Liability Conditions → Liability Connection → Liability Determination Only the later Determination stage governs whether Liability can legitimately attach and be determined.

Therefore:

Liability Basis ≠ Liability Attachment.

Liability Basis and Potential Liability

LBS contributes to the formation of a structured Potential Liability inquiry.

The canonical relationship is:

Governed Liability Object + Governed Liability Basis → Structured Potential Liability Inquiry This means there is now an identifiable matter and an identifiable foundation under which Liability may potentially exist.

It does not mean Liability has been established.

Potential Liability $\neq$ Attached Liability.

Multiple Liability Bases

A single Liability Object may be associated with more than one Liability Basis.

Those Bases may be:

parallel, alternative, concurrent, dependent, competing, or applicable to different Liability Relationships.

LBS preserves those differences instead of collapsing them into a generic reason for Liability.

Therefore:

One Liability Object $\neq$ One Liability Basis.

Likewise:

Multiple Liability Bases $\neq$ One Composite Basis by default.

Basis Change and Continuity

A Liability Basis may change over time.

It may be:

amended, superseded, terminated, reclassified, reassessed, or determined to be inapplicable.

LBS preserves those changes without rewriting earlier Basis states.

Therefore:

Current Liability Basis $\neq$ Complete Liability Basis History.

and:

Basis Supersession $\neq$ Historical Deletion.

This allows later Liability governance to reconstruct which Basis existed and which Basis state was relevant at a particular lifecycle moment.

Position in the LIGA™ Governance Flow

The complete LIGA™ Governance Flow is:

Liability Context $\rightarrow$ Liability Object $\rightarrow$ Liability Basis $\rightarrow$ Liability Relationships $\rightarrow$ Liability Conditions $\rightarrow$ Liability Connection $\rightarrow$ Liability Determination $\rightarrow$ Liability Scope & Allocation $\rightarrow$ Liability State & Change $\rightarrow$ Liability Transfer & Recourse $\rightarrow$ Liability Resolution & Discharge $\rightarrow$ Liability Continuity & Finality LBS occupies the third governance space:

Liability Basis

Its input is:

Governed Liability Object

Its principal output is:

Governed Liability Basis

Its handoff is:

Governed Liability Basis $\rightarrow$ Liability Relationship Governance

Cross-Architecture Relationship

LBS may receive governed inputs from other OOF® architectures.

GOA™ may provide Authority, Scope, Delegation, or related governance structures.

ORA™ may provide relevant Operational Reality.

AGA™ may provide Responsibility, Accountability, Authority, or Attribution structures.

HAGA™ may provide governed Harm where Harm is relevant to the Basis.

ADIT® may provide evidence concerning Basis source, status, authority, or applicability.

VALIDOS™ may validate Basis-relevant information.

OBIDENTITY® may provide Identity, Ownership, Authority, Permission, Provenance, Transfer, or Continuity structures.

AIG®, ASGA™, SIMULOS®, PGA™, and VFM® may provide other governed states relevant to particular Liability Bases.

The governing principle is:

An externally governed state may contribute to a Liability Basis without becoming Liability or transferring governance ownership of its original domain to LIGA™.

Critical Distinctions

Liability Object ≠ Liability Basis
Liability Basis ≠ Liability Conditions
Liability Basis ≠ Liability Subject
Liability Basis ≠ Liability Relationship
Liability Basis ≠ Liability Attachment
Liability Basis ≠ Liability Determination
Responsibility ≠ Liability Accountability
Liability Fault ≠ Liability Basis Breach
Liability Basis Harm ≠ Liability Basis Loss
Liability Basis Damage ≠ Liability Basis Claimed Basis
Governed Liability Basis Evidence of a Liability Basis ≠ Liability Basis itself
Basis Qualification ≠ Condition Satisfaction
Object–Basis Association ≠ Liability Attachment
Potential Liability ≠ Attached Liability

Use Case 1 — AI Service and Contractual Basis

An organization uses an AI-enabled service in an operational process and a Liability-relevant matter emerges.

LOS establishes the Governed Liability Object.

LBS then identifies a contractual provision as one potential Liability Basis and a separate regulatory requirement as another.

The two Bases are separately identified, sourced, classified, qualified, and associated with the Liability Object.

Their existence does not determine whether the AI provider, deploying organization, operator, or another Subject is liable.

LRS must first establish the relevant Liability Subjects and Relationships, and later LIGA™ stages must evaluate Conditions, Connection, and Determination.

LBS therefore prevents the existence of a contractual or regulatory rule from being treated as automatic Liability.

Use Case 2 — Industrial Equipment Matter

An industrial equipment failure creates a Liability-relevant matter.

The Governed Liability Object has already been established under LOS.

Several potential Liability Bases are identified, including a contractual maintenance obligation, an ownership-related obligation, and another applicable governed requirement.

LBS keeps those Bases separate and determines their source, classification, qualification, potential applicability, and association with the Object.

One Basis may later prove inapplicable while another proceeds through the Liability lifecycle.

The existence of equipment Damage or operational failure alone does not substitute for establishing the relevant Liability Basis.

Canonical Closing Statement

The existence of a consequence does not explain why Liability should exist.

The existence of a rule, obligation, responsibility, or allegation does not by itself establish Liability either.

LBS establishes the governed foundation upon which the Liability inquiry can legitimately continue while preserving the distinction between potential Liability and determined Liability.

A basis makes Liability possible to evaluate. It does not make Liability exist.

Establish the Basis before determining the Liability.

Governed Links

Liability Basis Standard (LBS)

LIGA™ Architecture Map

LIGA™ Liability Governance Architecture — Liability Governance Layer

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